

## 25NWCV03915 25NWCV03915

County: los-angeles

Division: Civil Law and Motion

Department: 508

Hearing date: 2026-08-28

Source URL:

[https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept\\_date=LAM%2C508%2C08%2F28%2F2026](https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C508%2C08%2F28%2F2026)

Source SHA-256: 4e16b378364e5bd1f4de5835f379a9c5c46cf86340c70845b59b94cde4f3e109

Case Number: 25NWCV03915 Hearing Date: August 28, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

508

AMORT CONSTRUCTION, INC.,

Plaintiff,

vs.

SDG SANTA FE SPRINGS, LLC, et al.,

Defendants.

Case No.:

25NWCV03915

Hearing Date:

August 28, 2026

Hearing Time:

8:30 a.m.

[TENTATIVE] ORDER RE:

PLAINTIFF AMORT

CONSTRUCTION, INC.'S MOTION TO COMPEL DEFENDANT DAVID BIRD, INC. DBA BIRDBROUP  
CONSTRUCTION TO PROVIDE RESPONSES, WITHOUT OBJECTION, TO (1) FORM  
INTERROGATORIES - CONSTRUCTION LITIGATION, SET NO. ONE; (2) REQUESTS FOR  
PRODUCTION OF DOCUMENTS, SET NO. ONE

#### Background

On November 4, 2025, Plaintiff Amort Construction, Inc. ("Amort") filed this action against Defendants SDG Santa Fe Springs, LLC and David Bird, Inc. doing business as Birdgroup Construction ("Birdgroup"), alleging eight causes of action for (1) breach of written contract; (2) open book account; (3) account stated; (4) claim for failure to promptly pay (Civil Code § 8814); (5) goods and services rendered; (6) quantum meruit; (7) unjust enrichment; and (8) foreclosure of claim of mechanics lien.

Amort now moves for an order compelling Birdgroup to provide answers and documents to Amort's Requests for Production of Documents, Set No. One, and to provide answers to Amort's Form Interrogatories - Construction Litigation, Set No. One. Amort also moves for monetary sanctions in connection with each motion against Birdgroup and its counsel of record, Steven R. Napoles, jointly and severally. Specifically, Amort seeks sanctions in the amount of \$2,358.70 for the motion to compel form interrogatories and \$3,008.70 for the motion to compel production of documents. On May 8, 2026, Birdgroup filed an opposition to the versions of these motions that were filed on April 23, 2026. The parties participated in an informal discovery conference that did not resolve the issues. Amort subsequently refiled and served these motions on July 24, 2026. Birdgroup did not file a new opposition. Nevertheless, the Court has considered the opposition filed on May 8, 2026 in connection with the newly filed motions.

#### Legal Standard

##### A. Interrogatories

##### Code of Civil

Procedure section 2030.260, subdivision (a) requires, "[w]ithin 30 days after

service of interrogatories, the party to whom the interrogatories are propounded shall serve the original of the response to them on the propounding party, unless on motion of the propounding party the court has shortened the time for response, or unless on motion of the responding party the court has extended the time for response." When a party fails to serve a timely response to a request for interrogatories, "[t]he party propounding the interrogatories may move for an order compelling response to the interrogatories" and for monetary sanctions. (Code Civ. Proc., § 2030.290, subds.

(b)-(c).) The responding party also waives the right to make any objections, including those based on privilege or work-product protection. (Code Civ. Proc., § 2030.290, subd. (a).)

#### B. Production of Documents

"Within 30 days after service of a demand for inspection, copying, testing, or sampling, the party to whom the demand is directed shall serve the original of the response to it on the party making the demand, and a copy of the response on all other parties who have appeared in the action." (Code Civ. Proc., § 2031.260, subd. (a).) "If a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it ... [t]he party to whom the demand for inspection, copying, testing, or sampling is directed waives any objection to the demand." (Code Civ. Proc., § 2031.300, subd. (a).)

#### C. Sanctions

Generally, the prevailing party on a discovery motion is entitled to monetary sanctions. (Code Civ. Proc., §§ 2023.030, subd. (a); 2030.290, subd. (c); 2031.300, subd. (b).) However, the Court retains discretion to deny sanctions where it finds the party "acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2030.290, subd. (c); 2031.300, subd. (c).) "Substantial justification" exists when the conduct at issue is "clearly reasonable because it is well grounded in both law and fact" ((Doe v. United States Swimming, Inc. (2011) 200 Cal.App.4th 1424, 1434.)

The burden of proving substantial justification rests on the party seeking to avoid sanctions. ((Id. at p. 1435.)) If sanctions are awarded, they must be limited to reasonable expenses, including attorney fees, incurred due to the discovery

misuse. (Code Civ. Proc., § 2023.030, subd. (a).)

## Discussion

### A. Discovery

#### Requests

Amort filed two motions to compel discovery responses from Birdgroup. For both motions, Amort's counsel provides a declaration detailing the history of events. Amort's counsel explains that he initially propounded discovery on Birdgroup for Form Interrogatories - Construction Litigation, Set No. One, and Requests for Production of Documents, Set No. One, on February 20, 2026, with responses "due on March 24, 2026." (Huber Decl., ¶¶ 2-3, Ex. A.) However, counsel explains that "Defendant failed to serve any response to the Interrogatories [or Production of Documents] on March 24, 2026. No extensions were granted, nor were any requested prior to Plaintiff's initiation of efforts to obtain responses." (Huber Decl., ¶ 3.) "On March 30, 2026, Plaintiff's counsel sent a meet and confer email to Defendant's counsel Steven R. Napoles regarding Defendant's lack of responses and that objections were waived. Plaintiff granted a courtesy extension to April 6, 2026, to provide responses, without objection." (Huber Decl., ¶ 4, Ex. B.) Then, "[o]n April 6, 2026, Plaintiff's counsel attempted to engaged in a further telephonic meet and confer leaving a voicemail for Defendant's counsel Steven R. Napoles. Thereafter, Plaintiff's counsel sent another meet and confer email to Defendant's counsel Steven R. Napoles, again providing a courtesy extension to April 9, 2026, to provide responses, without objection." (Huber Decl., ¶ 5, Ex. C.)

Thereafter, on July 7, 2026, the parties engaged in an Informal Discovery Conference, but Amort's counsel attests, "[a]s of the filing of this motion," on July 24, 2026, "Defendant has failed to provide any responses to the subject discovery. Defendant's willful refusal to serve responses ... and failure to participate in discovery is a misuse of the discovery process. As the result of Defendant's refusal to provide responses to Plaintiff's proper discovery, which responses are necessary in order for Plaintiff to proceed with meaningful discovery, proceed with depositions, evaluate Defendant's contentions, and effectively prosecute this action or prepare for trial, I had to write several emails and make telephone calls in attempts to resolve these issues. I have also been compelled to make the instant motion." (Huber Decl., ¶ 6.)

Amort's motion asserts that "Defendant's counsel Steven R. Napoles has failed to respond to the above meet and confers and Defendant has failed to provide any responses to the subject [discovery]. Defendant's willful refusal to serve responses to these Interrogatories [and Requests for Production] and failure to participate in discovery is a misuse of the discovery process... Consequently, Plaintiff respectfully requests an order compelling Defendant to serve verified responses to the Interrogatories [and requested production of documents], without objection, and issue joint and several monetary sanctions against Defendant and its counsel Mr. Napoles for [] their misconduct in forcing the bringing of this motion." (Mot., 4:3-12.)

In Birdgroup's opposition, it does not refute the contentions of Amort as to Birdgroup's failure to respond to the subject discovery. Counsel for Birdgroup indicates in his declaration that Birdgroup is in the process of winding down its business operations and has not provided him with the information needed to respond to discovery. (Napoles Dec., ¶ 6.)

The Court finds that, based on Amort's motions and the admission in the opposition, it is necessary to compel Birdgroup's responses to the outstanding discovery. The history demonstrates that Birdgroup failed to engage in good faith compliance with the discovery process, hindering Amort from progressing in the instant case. The Court grants Amort's discovery motions.

#### B. Sanctions Are Warranted

Amort's counsel explains that his hourly billing rate is \$350.00, given his "11 years experience as a trial attorney." (Huber Decl., ¶ 7.)

For the motion to compel requests for production of documents, Amort's counsel explains that "4½ hours of attorney time has been spent in the meet and confer process and researching and preparing Plaintiff's motion to compel Defendant to comply with Plaintiff's discovery request." (Huber Decl., ¶ 7.) Amort's counsel also "anticipate[s] that it will take an additional 2 hours to review Defendant's anticipated opposition to the motion, prepare a reply brief, and prepare for and attend the hearing of the motion. In addition, the filing fee incurred for the motion was

\$60.00, the e-filing fee was \$17.95 and the court technology fee was \$5.75, for a total of \$83.70 in costs. This amounts to a total \$2,358.70 in attorney fees and costs that Plaintiff has incurred in making its motion to compel." (Ibid.)

For the motion to compel form

interrogatories, Amort's counsel explains that "3½ hours of attorney time has been spent in the meet and confer process and researching and preparing Plaintiff's motion to compel Defendant to comply with Plaintiff's discovery Requests." (Huber Decl., ¶ 7.) Amort's counsel also "anticipate[s] that it will take an additional 2 hours to review Defendant's anticipated opposition to the motion, prepare a reply brief and prepare for and attend the hearing of the motion. In addition, the filing fee incurred for the motion was \$60.00, the e-filing fee was \$17.95 and the court technology fee was \$5.75, for a total of \$83.70 in costs." (Ibid.) Amort's counsel also requests "[a]n additional mandatory issuance of the \$1,000.00 sanction as required under Code of Civil Procedure section 2023.050," for a "total of \$3,008.70 in attorney fees and costs that Plaintiff has incurred in making its motion to compel." (Ibid.)

The Court finds the requested hourly

fee reasonable. However, given that Birdgroup did not file an opposition to the recent motions and the two hearings will take place on the same day, the Court finds that the requested hours are too high. Specifically, the Court awards Amort's counsel one hour in total for attending the hearing on the instant motions as well as the previous hearing on August 24, 2026, and no attorney time for a reply. The Court finds that awarding Amort fees for a total of 9 hours of time is reasonable. Accordingly, the Court awards Amort fees in the amount of \$3,150.00, comprising the 9 hours expended on the motions at a rate of \$350 per hour. The Court also finds the requests for costs reasonable, and awards Amort costs in the total amount of \$167.40.

The Court notes that Amort also seeks

additional sanctions under Code of Civil Procedure section 2023.050, subdivision (a). Specifically, that statute provides that "[n]otwithstanding any other law, and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose a one-thousand-dollar (\$1,000) sanction, payable to the requesting party, upon a party, person, or attorney if, upon reviewing a request for a sanction made pursuant to Section 2023.040, the court finds any of the following: (1) The party, person, or attorney did not respond in good faith to a request for the production of documents ... or to an inspection demand ... [or] (3) The

party, person, or attorney failed to confer in person, by telephone, letter, or other means of communication in writing, as defined in Section 250 of the Evidence Code, with the party or attorney requesting the documents in a reasonable and good faith attempt to resolve informally any dispute concerning the request.”

Amort asserts that “there is no excuse or justification for Defendant and its counsel’s continued refusal to provide verified responses to the subject discovery. The Declaration of Michael J. Huber submitted herewith attests to the efforts expended on the part of Plaintiff to avoid the instant motion.” (Mot., 5:24-27.) Further, Amort contends that “[i]t is evident from the facts presented that Defendant will not comply with this authorized method of discovery absent a court order and the imposition of sanctions, as Defendant continues to ignore binding authority that requires it to provide responses, without objection, to the overdue and outstanding discovery.” (Mot., 6:1-4.) Thus, “Pursuant to the Code of Civil Procedure ... and the power of this court to impose monetary sanctions against the losing party on a motion to compel responses to request for production Plaintiff respectfully requests that given the multiple attempts by Plaintiff to avoid this motion, and the lack of any responses whatsoever, sanctions be awarded to Plaintiff, and against Defendant and its counsel of record Steven R. Naples.” (Mot., 6:12-16.)

Although the Court already granted sanctions for attorney time expended on the instant motions, the Court will also grant, as to Birdgroup only, the additional \$1,000 sanction under Code of Civil Procedure section 2023.050, subdivision (a) requested by Amort. Birdgroup’s failure to provide any discovery to Amort demonstrates a lack of good faith. Thus, the Court grants Amort’s additional \$1,000 sanctions request as to Birdgroup.

#### Conclusion

Based on the foregoing, Amort’s motion to compel answers and documents to Requests for Production of Documents, Set No. One, and to compel answers to Form Interrogatories - Construction Litigation, Set No. One, is GRANTED. Birdgroup is ordered to provide code-compliant, verified responses and documents, without objections, to Amort’s Requests for Production of Documents, Set No. One, and answers to Form Interrogatories - Construction Litigation, Set No. One, within 30 days of the date of this Order.

Birdgroup is ordered to pay Amort  
sanctions in the amount of \$4,317.40 within 30 days of the date of this Order.

Birdgroup's counsel of record, Steven  
R. Naples, is ordered to pay Amort sanctions in the amount of \$3,317.40 within  
30 days of the date of this Order.

Amort is ordered to provide notice of  
this Order.

DATED: August 24, 2026

---

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior  
Court